

LEGISLATURE OF THE STATE OF IDAHO  
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1303

BY RESOURCES AND ENVIRONMENT COMMITTEE

AN ACT

RELATING TO ENERGY RESOURCES FUND; AMENDING SECTION 57-1306, IDAHO CODE, TO  
REVISE PROVISIONS REGARDING THE RENEWABLE ENERGY RESOURCES FUND AND TO  
MAKE TECHNICAL CORRECTIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN  
EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 57-1306, Idaho Code, be, and the same is hereby  
amended to read as follows:

57-1306. IMPACT FUNDS.

(1) (a) Upon receipt of any moneys from the federal government from sales, royalties, bonuses, or rentals of oil, gas, or mineral lands of the federal government, the state treasurer shall remit ten percent (10%) of such receipts to the general fund of the several counties from which the resources were extracted. The state treasurer shall compute a particular county's share of such receipts by computing the proportion of the moneys generated by sales, royalties, bonuses, or rentals of federal lands situated within that particular county to the total of moneys received from the federal government from sales, royalties, bonuses, or rentals of all oil, gas, or mineral lands of the federal government within the state of Idaho for the same period. The moneys remitted to the various counties according to the provisions of this section shall be used for the construction and maintenance of public roads or for the support of public schools.

(b) The remaining ninety percent (90%) of any moneys received from the federal government from sales, royalties, bonuses, or rentals of oil, gas, or mineral lands of the federal government shall be deposited into the public school income fund, pursuant to the provisions of section 33-903, Idaho Code.

(2) (a) The state treasurer shall remit ten percent (10%) of any moneys received from the sale, royalties, bonuses, or rental of renewable energy resources on lands of the federal government to the general fund of the several counties from which the resources were developed. The state treasurer shall compute a particular county's share of such receipts by computing the proportion of the moneys generated by sales, royalties, bonuses, or rentals of federal lands situated within that particular county to the total of moneys received from the federal government from sales, royalties, bonuses, or rentals of all renewable energy resource lands of the federal government within the state of Idaho for the same period. The moneys remitted to the various counties according to the provisions of this section shall be used for the construction and maintenance of public roads or for the support of public schools.

1 (b) The remaining ninety percent (90%) of any moneys received from the  
2 sale, royalties, bonuses, or rental of renewable energy resources on  
3 lands of the federal government, ~~and~~ any moneys from the federal govern-  
4 ment collected pursuant to the federal power act, 16 U.S.C. 803(e) (1),  
5 for the use of lands of the federal government, and such other moneys  
6 as may be provided by legislative appropriation, shall be deposited by  
7 the state treasurer into the ~~renewable~~ energy resources fund, which is  
8 hereby created. Any interest earned on the investment of idle moneys in  
9 the ~~renewable~~ energy resources fund shall be returned to the fund. Mon-  
10 eys in the ~~renewable~~ energy resources fund may be expended pursuant to  
11 appropriation and may be used by the administrator of the office of en-  
12 ergy and mineral resources consistent with the duties, powers, and au-  
13 thorities of the office.  
14 ~~(3)~~ (c) For the purposes of this subsection, "renewable energy re-  
15 sources" ~~shall only include means~~ geothermal, wind, and solar, and  
16 other sustainable energy resources.

17 SECTION 2. An emergency existing therefor, which emergency is hereby  
18 declared to exist, this act shall be in full force and effect on and after  
19 July 1, 2026.